

		The court denies the request to construe the motion for summary judgment of the entire complaint as a motion for judgment on the pleadings of a single cause of action on the ground the two causes of action are duplicative. The court need not rule on Plaintiff's objections to Defendants' evidence. Plaintiff to give notice.
104	Chan v. Blue Ray Aquatics, 2025-01524694	MOTION TO APPEAR PRO HAC VICE – DENIED WITHOUT PREJUDICE The unopposed application of attorney David A. DuBois to appear pro hac vice on behalf of Defendant Blue Ray Aquatics, LLC is DENIED WITHOUT PREJUDICE. Moving Attorney met the requirements of California Rules of Court, rule 9.40 <u>except</u> that Moving Attorney did not: (1) state his residence pursuant to rule 9.40(d)(1), (2) establish proper service on the state Bar of California pursuant to rule 9.40(c)(1), and (3) state that he is not "[r]egularly engaged in substantial business, professional, or other activities in the State of California" pursuant to 9.40(a)(1), (a)(2), and (a)(3). The Court notes that Counsel need not provide his exact residence address but he must identify the state of his legal residence. This information is not provided in counsel's declaration. Moving attorney to give notice.
105	Dodds-Tsang v. Garden Grove Post Acute, 2025-01536667	MOTION TO COMPEL ARBITRATION – DENIED Plaintiff Yvette Dodds-Tsang sued Defendant Garden Grove Post Acute LLC ("Defendant") for elder abuse, willful misconduct, and medical malpractice/wrongful death in connection with the death of Plaintiff's mother, Ha Tu. All of Plaintiff's claims are asserted as survival

causes of action which Plaintiff is bringing as a successor in interest to her deceased mother. Defendant moves to compel arbitration for all claims asserted against it and stay the case pending arbitration pursuant to “the binding Arbitration Agreement executed in connection with Ha Tu’s admission to the facility on or about April 8, 2025.”

Plaintiff Yvette Dodds-Tsang (“Plaintiff”) opposes the motion.

Pursuant to the holding in *Hearden v. Windsor Redding Care Center, LLC* (2024) 103 Cal.App.5th 1010, the Court finds that Defendant has not carried its burden to establish that the arbitration agreement is enforceable against Decedent Ha Tu and her representatives, agents, executors, family members, successors in interests and heir.

The causes of action asserted in the Complaint belong to Decedent Ha Tu. Plaintiff does not bring these causes of action in her individual capacity; rather, Plaintiff only brings these causes of action as successor in interest to decedent Ha Tu. As such, the Court is not persuaded the Plaintiff’s agreement to arbitrate in her individual capacity holds any significance since the only causes of action at issue are those that belong to the decedent. The decedent never agreed to arbitrate claims that belong to her and therefore caselaw establishes that decedent’s representatives, agents, executors, family members, successors in interests and heir shall not be bound to arbitrate claims that belong to the decedent.

Defendant shall file a responsive pleading within 20 days after Plaintiff serves notice of this ruling.

The order to show cause is discharged.

The case management conference is continued to October 12, 2026, at 1:30 p.m. in Department N14.

Plaintiff to give notice.

106	Fitch v. Krietenberg, 2024-01449068	MOTION FOR SUMMARY JUDGMENT – DENIED MOTION FOR SUMMARY ADJUDICATION – GRANTED IN PART AND DENIED IN PART Defendants Arthur Kreitenberg (“Arthur”), Melissa Kreitenberg (“Melissa”) and Elliot Kreitenberg (“Elliot”) (collectively, “Defendants”) move for summary judgment or, in the alternative, adjudication of issues as to Plaintiffs Ian Fitch (“Ian”) and Marie Fitch’s (“Marie”) (together, “Plaintiffs”) Complaint. A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (CCP §437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381-382 (pleadings serve as the outer measure of materiality in a summary judgment motion)). Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) The Complaint asserts causes of action by both Plaintiffs against all Defendants for (1) gross negligence; (2) negligence per se; (3) strict liability based on common law; (4) strict liability based on dog bite statute; (5) Negligent infliction of emotional distress; (6) private nuisance; and (7) public nuisance. The undisputed facts are that on July 7, 2023, Marie Fitch was walking two dogs on the public sidewalk in front of 12012 Silver Fox Road, which is owned and resided in by Arthur and Melissa. (UF 1, 11.) A chow chow dog named FJ approached and “clamped down” on the hip of one of Marie’s dogs. (UF 2.) Marie was not bitten. (UF 4.) Ian was not present at the time of the incident. (UF 6.) FJ’s owner is Elliot, who was visiting his parents’ home at the time. (UF 6-7.) FJ had escaped through a side gate on the property. (UF 9.)
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